

ORIGINAL

BEFORE THE FEDERAL MARITIME COMMISSION

RECEIVED

AL KOGAN d/b/a GALAWAY
INTERNATIONAL,

Complainant,

v.

WORLD EXPRESS SHIPPING,
TRANSPORTATION AND FORWARDING
SERVICES, INC , an Illinois corporation,
d/b/a W.E S T FORWARDING SERVICES
(FMC Lic # 3 118-R),

Respondent.

00 JUN 26 PM 3:41

OFFICE OF THE SECRETARY
FEDERAL MARITIME COMM

Docket No 00-04

HON NORMAN D KLINE

**COMPLAINANT AL KOGAN'S FIRST SET OF INTERROGATORIES
TO W.E.S.T. FORWARDING SERVICES**

AL KOGAN d/b/a GALAWAY INTERNATIONAL ("Al Kogan"), by and through his attorney, JONATHAN CLARK GREEN, P C , propounds the following interrogatories to W.E S T Forwarding Services ("WEST Forwarding"), to be answered under oath, within 30 days of service hereof, pursuant to Rule 33 of the Federal Rules of Civil Procedure

GENERAL INSTRUCTIONS

1 Furnish all requested responses and documents that are available to WEST Forwarding, or to any of WEST Forwarding's agents, representatives, attorneys, or employees, including hearsay, and that is not subject to a valid objection.

2 If the respondent is unable to fully respond to any interrogatory, respond to the fullest extent possible, and give the reason(s) for the inability to fully respond.

3 In the event any information or document is withheld as privileged, identify the information or document as to the subject matter, date, sender and receiver, as applicable,

state the number of pages therein, and state the privilege or privileges asserted and each and every basis for such assertion of privilege

4 If only a portion of any information or document is subject to an assertion of privilege, produce each and every portion of such information or document not containing the allegedly privileged matter

5 In the event you object to any interrogatory or part thereof, respond to all information and produce all documents in the category requested to the full extent that such response or production would not be subject to your objection. Also include the grounds for objection and the identity of any and all persons having knowledge of the information being withheld.

6 Any information and documents produced pursuant to these interrogatories should be separately identified according to each paragraph or paragraphs of these interrogatories to which they relate

7 If the person responding to any interrogatory does not have personal knowledge of the subject matter of any interrogatory, or part or subpart thereof, that person shall identify any and all individuals having personal knowledge of the subject matter of that interrogatory

8 Plural and singular nouns, as well as the words "all," "any," "each," "every," and "the," are to be interpreted in the manner that brings within the scope of these interrogatories the broadest response possible

DEFINITIONS

For the purposes of this Request for Production of Documents, the following definitions shall apply

“WEST” shall include Respondent WEST Forwarding Services, as well as any of its employees, agents, attorneys, consultants, representatives, and any person acting on the behalf it.

“Westainer” shall include Westainer Lines, the NVOCC owned by the principals of WEST, as well as any of its employees, agents, attorneys, consultants, representatives, and any person acting on the behalf of it.

“Al Kogan” shall include Complainant Al Kogan d/b/a Galaway International, as well as any of his employees, agents, attorneys, consultants, representatives, and any person acting on the behalf of him.

“AOL” shall include Atlantic Ocean Line, a New York corporation, as well as any of its subsidiaries, employees, agents, attorneys, consultants, representatives, and any person acting on its behalf.

“ZIM” shall include ZIM Israel Navigation Company, as well as any of its subsidiaries, employees, agents, attorneys, consultants, representatives, and any person acting on its behalf, including WELZ-ZIM LTD , in Moscow

“Container” shall include the 40-foot container, numbered ZCSU214858-0, carrying 2359 cases of auto care products, that was to be transported to Moscow, Russia, via Kotka, Finland, pursuant to the terms of the oral contract entered into between W.E S T and Al Kogan on or about January, 1998, which was given a W.E S T reference number of CHE 030492

“FMC” shall mean the Federal Maritime Commission, as well as any of its employees, agents, attorneys, consultants, representatives, and any person acting on the behalf of it.

“Person” means and includes, without limiting the generality of its meaning, every natural person, corporate entity, partnership, association, governmental body or agency

“Document” means all written or graphic matter or description--however produced or reproduced, whether draft, original or reproduction or unidentical copy, signed or unsigned, approved, sent, received, redrafted or executed-- including but not limited to, written or interoffice communications, letters, correspondence, including facsimile transmissions and electronic mail, memoranda, minutes, notes, films, recordings of any type, transcripts, contracts, agreements, quotes, purchase or sales orders, memoranda, quotes, purchase or sales orders, memoranda of telephone or personal conversations, diaries, reports, studies, photos, bills, receipts, checks, checkbooks, reports, studies, analyses, or material similar to any of the foregoing--however denominated, by whoever prepared, and to whomever addressed-- which are in your custody, possession or control or to which you have, have had, or can obtain access

“Identify)” with respect to a person means to give a person’s complete name, last known residential address, home telephone number (including area code), last known employer, last

known employer's telephone number (including area code), and the job position held at such last known employer. With respect to a corporate entity, partnership, association, governmental body or agency, give the full name of the company or agency, the telephone number of the company or agency (including area code), and the principal place of business of the company or agency.

"Identify" with respect to a document means to give a description of such document sufficient to distinguish that document from any and all other documents, and shall include but not be limited to a description of the document's date, location or custodian, and maker, signer, preparer, or sender. For photographs, identify the person that took the photograph.

INTERROGATORIES

INTERROGATORY No. 1. Identify any and all persons who were present or who have personal knowledge of the events described in Al Kogan's complaint, WEST's answer and counterclaim to that complaint, and the answer thereto, in this matter.

INTERROGATORY No. 2. Identify any written or oral statements made by any parties or persons with knowledge of the allegations in Al Kogan's complaint, WEST's answer and counterclaim to that complaint, and the answer thereto, in this matter. For each such statement, indicate whether it is written or oral. If written, indicate the date when made and the name and address of the person who has custody of said statement. If oral, indicate the time, date made and persons present when said statement was made.

INTERROGATORY No. 3. Describe in detail the contract, oral or written, between WEST and Al Kogan relating to the transport of the Container. If written, indicate the date when made and the name and the address of the person who has custody of said contract. If oral, indicate the time, date made and persons present when said contract was made.

INTERROGATORY No. 4. Describe in detail the alleged instructions from Al Kogan to WEST to specifically use AOL for the shipment of the Container. If written, indicate the date when made and the name and the address of the person who has custody of

said writing. If oral, indicate the time, date made and persons present when said instruction was given.

INTERROGATORY No. 5. How and when did WEST participate in the transport of the Container Identify any and all persons who have or may have personal knowledge of such participation.

INTERROGATORY No. 6. Describe precisely the different kinds of business activities that WEST and its affiliated company Westainer is engaged in and the services they offer in their respective capacities as non-vessel operating common carriers (NVOCCs) and in their respective capacities as freight forwarders

INTERROGATORY No. 7. Describe in detail what services were offered to Al Kogan in 1997 and 1998 by WEST and Westainer and what actual work was performed by WEST and Westainer for Al Kogan during that period. Also describe in detail specifically what such services and actual work was done by WEST and Westainer in regard to the shipment of this Container Identify any and all persons who have or may have personal knowledge of such services and such actual work for the period 1997 and 1998, including specifically any services or actual work done for the shipment of this Container

INTERROGATORY No. 8. Please identify the Bill(s) of Lading, the shipper's letter(s) of instruction, the invoice(s), the preshipment inspection worksheet(s) and the preshipment inspection certificate(s), delivery instructions, dock receipt(s), rate filings with the FMC, all consular documents and export declarations, and all other Documents issued or submitted for purposes of the transport of the Container

INTERROGATORY No. 9 Identify all the written and oral instructions, requests, or indications made by WEST, Al Kogan, or any other person in regard to the route to be followed for the transport of the Container

INTERROGATORY No. 10: State with particularity all events or conversations involving any changes in the instructions, requests, or indications by WEST, Al Kogan, or any other person, cited in Interrogatory No 9, above

INTERROGATORY No. 11. State with particularity events and conversations in which Al Kogan or other persons complained to WEST regarding the non-performance of the contract for the transport of the Container Identify any and all persons who have knowledge of such complaints and the Documents relating to such complaints

INTERROGATORY No. 12. Identify any and all persons or entities who, from 1996 to the present, complained orally, electronically, or in writing to WEST, the FMC, or any other private or governmental organization, or otherwise lodged a complaint with WEST, the FMC, or any other private or governmental organization, concerning the poor performance of WEST, its employees, or its agents, and state the nature of such complaint(s) and when and where they were made

INTERROGATORY No. 13. Identify each witness you have a statement from in regard to acts referred to in Al Kogan's complaint, WEST's answer and counterclaim to that complaint, and the answer thereto, in this matter, the date of said statement, and whether such statement was written or oral.

INTERROGATORY No. 14 Identify any expert witnesses which WEST intends to use at trial. Do you have any written reports from any of these expert witnesses? If so, who has custody of them? Please state the substance of the expert witnesses' testimony

INTERROGATORY No. 15 Identify any and all persons and entities employed or hired by WEST who worked on, or otherwise performed services related to, the transport of the Container, and what their respective work or service consisted of.

INTERROGATORY No. 16 List and describe any and all costing or valuation methods used by WEST, or any other individual or entity working on behalf of WEST, in determining any costs or expenses involved in the transport of the Container as well as the invoice amounts charged to Al Kogan relating to the transport of the Container, and how the particular amounts were arrived at in this case, including, in particular, the \$6,300 amount charged to Al Kogan for the shipment of the Container from Kotka to Chelyabinsk in August of 1998 Identify any and all persons who have or may have personal knowledge of the application of such costing or valuation methods to the transport of the Container as well as to any of the invoice amounts charged to Al Kogan relating to the transport of the Container, and how the particular amounts were arrived at in this case

INTERROGATORY No. 17 Describe in detail the exact function and responsibilities undertaken by each intermediary in the transport of the Container

INTERROGATORY No. 18. Identify any and all persons with whom WEST had communications, whether oral, electronic, or written, at the following entities, between 1996 and the present, and when, how and where such communications took place, the subject matter of those communications, and any and all persons who would have personal knowledge of such communications

- a. Al Kogan,
- b. AOL,
- c. Recovery International Inc ,

- d. Treatment Products, Ltd.
- e M.S Line LTD ,
- f. Argosy International Insurance,
- g. O'Donnell, Byrne and Williams,
- h. Krogius,
- i. Stevco OY,
- j. OOCL (FINLAND) OY,
- k. Black Sea and Baltic General Insurance Company Limited,
- l Yoram Haham and Co ,
- m. ZIM (including WELZ-ZIM LTD)

INTERROGATORY No. 19 Describe in detail what, if any, effort was made by WEST to review the shipping details, including a review of Llyod's shipping schedules, of the Container once ZIM Japan.2 1 was identified as the vessel transporting the Container

INTERROGATORY No. 20 Describe in detail how and when, if ever, WEST notified AOL that the Container must go through Kotka.

INTERROGATORY No. 21 Describe in detail how and when WEST discovered that the Container was being sent to Haifa and Odessa instead of Kotka.

INTERROGATORY No. 22 Describe in detail WEST's previous relationship with AOL previous to the shipment of this Container and identify which person or persons has personal knowledge of that relationship

INTERROGATORY No. 23 Describe in detail what, if any, efforts were made by WEST to resolve the deviation of the Container from its shipping date of March 9, 1998 to March 31, 1998, and why the Container was later directed through Antwerp and not Hamburg on its way from Haifa to Kotka.

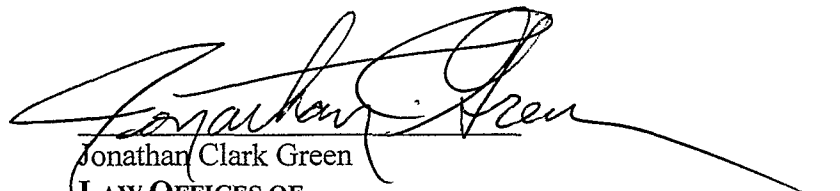
INTERROGATORY No. 24 Describe in detail when and where the ZIM bills of lading for the shipment of the Container were produced and why there is no freight forwarder listed on those bills of lading.

INTERROGATORY No. 25 Describe in detail why WEST, as an alleged S-eight forwarder and not an NVOCC, charged Al Kogan additional monies for his ocean freight, and why, in Al Kogan's final invoices from WEST, credits were not provided for shipments not completed.

Respectfully submitted,

AL KOGAN d/b/a GALAWAY
INTERNATIONAL

By its attorney,


Jonathan Clark Green
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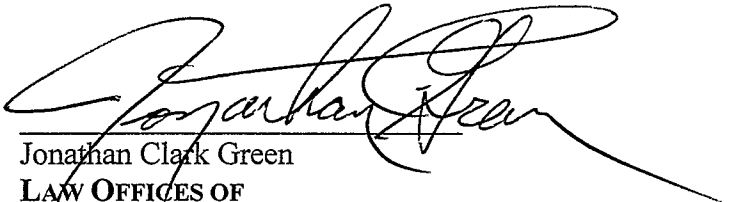
CERTIFICATE OF SERVICE

I, Jonathan Clark Green of LAW OFFICES OF JONATHAN CLARK GREEN, P C , attorney for Complainant Al Kogan d/b/a Galaway International, hereby certify that I caused a copy of the foregoing COMPLAINANT AL KOGAN'S FIRST SET OF INTERROGATORIES TO W.E S T FORWARDING SERVICES to be served upon.

Peggy Chaplin
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by depositing same in the United States Mail's Express Mail Service, on this 20th day of June, 2000


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